VOLUME III – CONTRACT FORMS/ RESPONSIBILITY

Table of Contents

Proposal Data Sheet 2
Standard Form 1442 3
Amendment Acknowledgement 001 5
Amendment Acknowledgement 002 6
Amendment Acknowledgement 003 7
Amendment Acknowledgement 004 8
Amendment Acknowledgement 005 9
Agreements-Certification. 2018-06 10
Section K 13
Financial Resources 21
- Cover Letter 22
- Financial Capability Letter from Financial Institution 23
- Bonding Capability 25
- Income Statement and Balance Sheet 27
  - Year 2015 -2019 28-42

8(a) Status 43
Teaming Agreements 48

Proposal Data Sheet (Includes Authorized Personnel)

1.	**Name of Solicitation**: Multiple Award Construction Contract (MACC) for Joint Base Andrews, MD and Joint Base Anacostia Bolling, Washington, D.C	
2.	**Offering Firm's Name As Appears on the SF 1442:** Miami Wiipica **Offering Firm's DUNS number as it appears on the SF 1442**: 117007074 **Cage Code**: 8B6Y9	
3.	**Mailing Address**:	1950 Roland Clarke Place, Suite 210E Reston, VA 20191
4.	**Telephone Number:**	571-323-5673
5.	**Email Address to use for all correspondence**	cwhitlock@mn-e.com
6.	AUTHORIZED NEGOTIATORS. Far 52.215-11. The Offeror represents that the following person(s) are authorized to negotiate on its behalf with the Government in connection with this List name(s), title, and telephone numbers of authorized negotiator(s). **Name of Person(s) Authorized to Negotiate:** Cecil Whitlock –Program Manager **Negotiator's Address**: 1950 Roland Clarke Place, Suite 210E Reston, VA 20191 **Negotiator's Telephone**: 571-323-5673 **Negotiator's E-mail:** cwhitlock@mn-e.com **Negotiator's Signature:** _____	

SOLICITATION, OFFER, AND AWARD *(Construction, Alteration, or Repair)*	1. SOLICITATION NUMBER	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE OF PAGES
	FA286020R0045	☐ SEALED BID *(IFB)* ☒ NEGOTIATED *(RFP)*	7/15/2020	1 of 70

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER	5. REQUISITION/PURCHASE REQUEST NUMBER	6. PROJECT NUMBER
	A007807	TBD

7. ISSUED BY CODE FA2860

FA2860 11 CONS LGC
1349 LUTMAN DR
CP 240 612 5675
JB ANDREWS, MD 20762-7001
United States
Sara Strange, Email: sara.strange@us.af.mil Telephone: 240-612-5685

8. ADDRESS OFFER TO

FA2860 316 CONS PK
CP 240 612 5676
1349 LUTMAN DR
JB ANDREWS, MD 20762-7001
United States

9. FOR INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(Include area code) (NO COLLECT CALLS)*
	Sara Strange, Sara Q. Strange, Contracting Officer	240-612-5685

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

Project Title: Multiple Award Construction Contract

1) This is a Request for Proposal for a Multiple Award Construction Contract (MACC) for Joint Base Andrews, MD and Joint Base Anacostia Bolling, Washington, D.C.
2) This acquisition is being issues as 100% Set-Aside for certified Small Business Administration (SBA) 8(a) entities and 8(a) Joint Ventures within the Mid-Atlantic Region (Delaware, District of Columbia, Maryland, Pennsylvania, Virginia, and West Virginia); FAR Part 15 Source Selection Procedures
3) Applicable North American Industry Classification (NAICS) Code: 236220-Size Standard $39.5M
4) Award of solicitation will result in a Firm Fixed Price, Multiple Award Indefinite Delivery, Indefinite Quantity (IDIQ) contract.
5) Award will be made to all qualifying offerors
6) See Schedule; Offerors are required to complete and return SF 1442 (Section B through K)
7) Period of Performance: One (1) 12 month base year and six (6) years option periods. Total of seven (7) Years.
8) The total contract value including all options is not to exceed (NTE) $700,000,000.00. Funding against an IDIQ contract will be cited on each individual task order as stated in Section G.
9) A Pre-Proposal Conference and Site Visit is planned on or around 11 August 2020. See Section L, Provision 52.236-27 Alt- I for further information.
10) In Block 11, the number of calendar days for the "performance begins" and "completed within" shall be determined at the issuance of each task order.
11) Contractors will be required to submit proposals on all Task Orders issued under the IDIQ.
12) Questions regarding the solicitation must be submitted in writing in Microsoft Word format to 316CONS.MACC.ORG@us.af.mil no later than (NLT) 1 August 2020, 12:00 PM EST.

11. The contractor shall begin performance within 14 calendar days and complete it within 2555 calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☐ mandatory ☒ negotiable. ***(See*** FAR 52.211-10 ***).***

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES", indicate within how many calendar days after award in Item 12b)*	12b. CALENDAR DAYS
☒ YES ☐ NO	14

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 3 copies to perform the work required are due at the place specified in Item 8 by 12:00 PM ***(hour)*** local time 9/10/2020 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☐ is, ☒ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 120 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER *(Must be fully completed by offeror)*

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*

Miami Wiipica LLC
1950 Roland Clarke Place, Suite 210E
Reston, VA 20191

CODE FACILITY CODE

15. TELEPHONE NUMBER *(Include area code)*

571-323-5673

16. REMITTANCE ADDRESS *(Include only if different than Item 14.)*

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within 180 calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d)*

AMOUNTS ▶ NA

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS
(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER	001	002	003	004	005					
DATE.	7/21/20	8/13/20	8/13/20	9/1/20	9/11/20					

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*

Cecil Whitlock, Program Manager

20b. SIGNATURE

20c. OFFER DATE

9/10/2020

AWARD *(To be completed by Government)*

21. ITEMS ACCEPTED:

22. AMOUNT

23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)* ▶ ITEM

25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO
☐ 10 U.S.C. 2304(c) ( ) ☐ 41 U.S.C. 3304(a) ( )

26. ADMINISTERED BY

27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return_____copies to issuing office)* Contractor agrees to furnish and deliver all items or perform all work requirements identified on his form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.

☐ 29. AWARD *(Contractor is not required to sign this document.)* Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) he Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*

31a. NAME OF CONTRACTING OFFICER *(Type or print)*

Michael Carmody
Email: michael.carmody.2@us.af.mil
Telephone: 240-612-5622

30b. SIGNATURE

30c. DATE

31b. UNITED STATES OF AMERICA

BY

31c. DATE

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE	OF	PAGES
	1		2

2. AMENDMENT/MODIFICATION NUMBER	3. EFFECTIVE DATE	4. REQUISITION/PURCHASE REQUISITION NUMBER	5. PROJECT NUMBER *(If applicable)*
0001	7/21/2020	A007807	TBD

6. ISSUED BY CODE FA2860

FA2860 11 CONS LGC
1349 LUTMAN DR
CP 240 612 5675
JB ANDREWS, MD 20762-7001
United States
Sara Strange, Email: sara.strange@us.af.mil Telephone: 240-612-5685

7. ADMINISTERED BY *(If other than Item 6)* CODE

8. NAME AND ADDRESS OF CONTRACTOR *(Number, street, county, State and ZIP Code)*

CODE FACILITY CODE

(X)

☒ 9A. AMENDMENT OF SOLICITATION NUMBER FA286020R0045

9B. DATED *(SEE ITEM 11)* 7/15/2020

☐ 10A. MODIFICATION OF CONTRACT/ORDER NUMBER

10B. DATED *(SEE ITEM 13)*

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By comple ing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

See Section G

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	
☐	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation data, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor ☒ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (*Organized by UCF section headings, including solicitation/contract subject matter where feasible*)

The purpose of Amendment 01 is administrative in nature and is strictly to upload Attachment 17 (Section L - Instructions, Conditions, and Notices to Offerors) and Attachment 18 (Section M - Evaluation Factors for Award) that failed to upload previously. No other updates/changes are made as a result of this amendment.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*		16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*	
		Michael Carmody Email: michael.carmody 2@us.af.mil Telephone: 240-612-5622	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		Michael A Carmody *(Signature of Contracting Officer)*	21July20

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STANDARD FORM 30 (REV. 11/2016)
Prescribed by GSA FAR (48 CFR) 53.243

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE	OF	PAGES
	1		4

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0002	8/13/2020	A007807	TBD

6. ISSUED BY CODE FA2860

FA2860 11 CONS LGC
1349 LUTMAN DR
CP 240 612 5675
JB ANDREWS, MD 20762-7001
United States
Sara Strange, Email: sara.strange@us.af.mil Telephone: 240-612-5685

7. ADMINISTERED BY *(If other than Item 6)* CODE

8. NAME AND ADDRESS OF CONTRACTOR *(Number, street, county, State and ZIP Code)*

CODE FACILITY CODE

(X)

☒ 9A. AMENDMENT OF SOLICITATION NUMBER FA286020R0045

9B. DATED *(SEE ITEM 11)* 7/15/2020

☐ 10A. MODIFICATION OF CONTRACT/ORDER NUMBER

10B. DATED *(SEE ITEM 13)*

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Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By comple ing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

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☐	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor ☒ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (*Organized by UCF section headings, including solicitation/contract subject matter where feasible)*

SEE CONTINUATION PAGE

Except as provided herein, all terms and conditions of he document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*		16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)* Michael Carmody Email: michael.carmody 2@us.af.mil Telephone: 240-612-5622	
15B. CONTRACTOR/OFFEROR *(Signature of person authorized to sign)*	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA *(Signature of Contracting Officer)*	16C. DATE SIGNED

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AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE	OF	PAGES
	1		2

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0003	8/13/2020	A007807	TBD

6. ISSUED BY CODE FA2860

FA2860 11 CONS LGC
1349 LUTMAN DR
CP 240 612 5675
JB ANDREWS, MD 20762-7001
United States
Sara Strange, Email: sara.strange@us.af.mil Telephone: 240-612-5685

7. ADMINISTERED BY *(If other than Item 6)* CODE

8. NAME AND ADDRESS OF CONTRACTOR *(Number, street, county, State and ZIP Code)*

CODE FACILITY CODE

(X)

☒ 9A. AMENDMENT OF SOLICITATION NUMBER FA286020R0045

9B. DATED *(SEE ITEM 11)* 7/15/2020

☐ 10A. MODIFICATION OF CONTRACT/ORDER NUMBER

10B. DATED *(SEE ITEM 13)*

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(a) By comple ing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of his amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

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☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor ☒ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (*Organized by UCF section headings, including solicitation/contract subject matter where feasible*)

Financial Resource submittal due date has been extended from 17 August 2020 to 24 August 2020. Section L - Instructions Conditions and Notices to Offerors, paragraphs L.2.1.7 and L.5 (d) have been updated accordingly.

Except as provided herein, all terms and conditions of he document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*		16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*	
		Michael Carmody Email: michael.carmody 2@us.af.mil Telephone: 240-612-5622	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		CARMODY.MICHAEL.ANDREW.1297931497 Digitally signed by CARMODY.MICHAEL.ANDREW.1297931497 Date: 2020.08.17 17:29:37 -04'00' *(Signature of Contracting Officer)*	20Aug2020

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FA2860 316 CONS PK
CP 240 612 5676
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Sara Strange, Email: sara.strange@us.af.mil Telephone: 240-612-5685

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8. NAME AND ADDRESS OF CONTRACTOR *(Number, street, county, State and ZIP Code)*

CODE FACILITY CODE

(X)

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☐	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor ☒ is not ☐ is required to sign this document and return _____ copies to the issuing office.

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SEE CONTINUATION PAGE

Except as provided herein, all terms and conditions of he document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*		16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)* Michael Carmody Email: michael.carmody 2@us.af.mil Telephone: 240-612-5622	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		*(Signature of Contracting Officer)*	

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6. ISSUED BY CODE FA2860

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United States
Sara Strange, Email: sara.strange@us.af.mil Telephone: 240-612-5685

7. ADMINISTERED BY *(If other than Item 6)* CODE

8. NAME AND ADDRESS OF CONTRACTOR *(Number, street, county, State and ZIP Code)*

CODE FACILITY CODE

(X)

☒ 9A. AMENDMENT OF SOLICITATION NUMBER FA286020R0045

9B. DATED *(SEE ITEM 11)* 7/15/2020

☐ 10A. MODIFICATION OF CONTRACT/ORDER NUMBER

10B. DATED *(SEE ITEM 13)*

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

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12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

See Section G

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☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor ☒ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (*Organized by UCF section headings, including solicitation/contract subject matter where feasible)*

The purpose of this amendment is to clarify the bonding capability required for this effort. As posted in response to industry RFIs on 01 August 2020, and again on 04 September 2020, the single bonding capacity required for this effort is $15M. This threshold aligns to the maximum single task order award threshold of $15M for the MACC RFP. Section L, 5.0, has been updated to reflect this clarification.

Except as provided herein, all terms and conditions of he document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*		16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*	
		Michael Carmody Email: michael.carmody 2@us.af.mil Telephone: 240-612-5622	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		CARMODY.MICHAEL.ANDREW.1297931497 Digitally signed by CARMODY.MICHAEL.ANDREW.1297931497 Date: 2020.09.11 17:12:23 -04'00' *(Signature of Contracting Officer)*	11Sept20

Previous edition unusable

STANDARD FORM 30 (REV. 11/2016)
Prescribed by GSA FAR (48 CFR) 53.243

Agreements-Certification. 2018-06

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement. (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at https://dibnet.dod.mil. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at https://dibnet.dod mil.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause

(i) Within one business day from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial items.

(End of clause)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. 2016-02

As prescribed in 9.104-7 (d), insert the following provision:

Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is is not a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is is not a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification. 2018-06

As prescribed in 9.109-5 , insert the following provision:

VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (JUN 2018)

(a) This provision does not apply to acquisitions below the simplified acquisition threshold or to acquisitions of commercial items as defined at FAR 2.101.

(b) *Certification*. [*Offeror shall check either (1) or (2).*]

✓ - (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available via the Internet at https://www.state.gov/t/avc/rls /rpt/; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available via the Internet at https://www.state.gov/t/avc/rls/rpt/; or

____ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies*. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

Section K

Section K - Representations, Certification, and other Statements of Offerors

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.204-7 Alternate I	System for Award Management. - (Alternate I)	2018-10
52.204-7	System for Award Management.	2018-10
52.236-28	Preparation of Proposals-Construction.	1997-10

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials. As prescribed in 203.171-4(b), insert the following provision:	2011-11
252.219-7000	Advancing Small Business Growth	2016-09

FAR Clauses Incorporated by Full Text

52.204-8 Annual Representations and Certifications. 2020-03

As prescribed in 4.1202(a), insert the following provision:

Annual Representations and Certifications (Mar?2020)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 236220.

(2) The small business size standard is 39.5.

(3) The small business size standard for a concern which submits an offer in its own name, other than on a construction or service contract, but which proposes to furnish a product which it did not itself manufacture, is 500 employees.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) Paragraph (d) applies.

(ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract will be performed in the United States or its outlying areas.

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract will be performed in the United States or its outlying areas.

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial items.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of USDA-designated items; or include the clause at 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the clause at 52.204-7.)

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates I, II, and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than $25,000, the basic provision applies.

(B) If the acquisition value is $25,000 or more but is less than $50,000, the provision with its Alternate I applies.

(C) If the acquisition value is $50,000 or more but is less than $83,099, the provision with its Alternate II applies.

(D) If the acquisition value is $83,099 or more but is less than $100,000, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

__ (i)____ 52.204-17, Ownership or Control of Offeror.

__ (ii)____ 52.204-20, Predecessor of Offeror.

__ (iii)____ 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

__ (iv)____ 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

__ (v)____ 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

__ (vi)____ 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPA-Designated Products (Alternate I only).

__ (vii)____ 52.227-6, Royalty Information.

__ ____ (A)Basic.

__ ____ (B)Alternate I.

__ (viii)____ 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through https://www.sam.gov. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause # Title Date Change

____

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-19 Incorporation by Reference of Representations and Certifications. 2014-12

As prescribed in 4.1202(b), insert the following clause.

INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)

The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. 2019-12

As prescribed in 4.2105(a), insert the following provision:

Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (Dec 2019)

The Offeror shall not complete the representation in this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Items.

(a) Definitions. As used in this provision-

"Covered telecommunications equipment or services", "critical technology", and "substantial or essential component" have the meanings provided in clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition. Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Contractors are not prohibited from providing-

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) Representation. The Offeror represents that it will, will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will" provide covered telecommunications equipment or services", the Offeror shall provide the following information as part of the offer-

(1) A description of all covered telecommunications equipment and services offered (include brand; model number, such as original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(2) Explanation of the proposed use of covered telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b) of this provision;

(3) For services, the entity providing the covered telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known); and

(4) For equipment, the entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation. 2019-12

As prescribed in 4.2105(c), insert the following provision:

Covered Telecommunications Equipment or Services-Representation (Dec 2019)

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) Representation. The Offeror represents that it does, does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. 2018-10

As prescribed at 9.104-7 (b), insert the following provision:

Information Regarding Responsibility Matters (Oct 2018)

(a) Definitions. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror has does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an

active registration in the System for Award Management, which can be accessed viahttps://www.sam.gov (see 52.204-7).

(End of provision)

52.222-23 Notice of Requirement for Affirmative Action to Ensure Equal Employment Opportunity for Construction. 1999-02

As prescribed in 22.810(b), insert the following provision:

NOTICE OF REQUIREMENT FOR AFFIRMATIVE ACTION TO ENSURE EQUAL EMPLOYMENT OPPORTUNITY FOR CONSTRUCTION (FEB 1999)

(a) The offeror's attention is called to the Equal Opportunity clause and the Affirmative Action Compliance Requirements for Construction clause of this solicitation.

(b) The goals for minority and female participation, expressed in percentage terms for the Contractor's aggregate workforce in each trade on all construction work in the covered area, are as follows:

Goals for Minority Participation for EachTrade	Goals for Female Participation for EachTrade
_____	_____
[*Contracting Officer shall insert goals*]	[*Contracting Officer shall insert goals*]

These goals are applicable to all the Contractor's construction work performed in the covered area. If the Contractor performs construction work in a geographical area located outside of the covered area, the Contractor shall apply the goals established for the geographical area where the work is actually performed. Goals are published periodically in the *Federal Register* in notice form, and these notices may be obtained from any Office of Federal Contract Compliance Programs office.

(c) The Contractor's compliance with Executive Order11246, as amended, and the regulations in 41 CFR 60-4 shall be based on (1) its implementation of the Equal Opportunity clause, (2) specific affirmative action obligations required by the clause entitled "Affirmative Action Compliance Requirements for Construction," and (3) its efforts to meet the goals. The hours of minority and female employment and training must be substantially uniform throughout the length of the contract, and in each trade. The Contractor shall make a good faith effort to employ minorities and women evenly on each of its projects. The transfer of minority or female employees or trainees from Contractor to Contractor, or from project to project, for the sole purpose of meeting the Contractor's goals shall be a violation of the contract, Executive Order11246, as amended, and the regulations in 41 CFR 60-4. Compliance with the goals will be measured against the total work hours performed.

(d) The Contractor shall provide written notification to the Deputy Assistant Secretary for Federal Contract Compliance, U.S. Department of Labor, within 10 working days following award of any construction subcontract in excess of $10,000 at any tier for construction work under the contract resulting from this solicitation. The notification shall list the-

(1) Name, address, and telephone number of the subcontractor;

(2) Employer's identification number of the subcontractor;

(3) Estimated dollar amount of the subcontract;

(4) Estimated starting and completion dates of the subcontract; and

(5) Geographical area in which the subcontract is to be performed.

(e) As used in this Notice, and in any contract resulting from this solicitation, the "covered area" is ____ *[Contracting Officer shall insert description of the geographical areas where the contract is to be performed, giving the state, county, and city].*

(End of provision)

52.226-3 Disaster or Emergency Area Representation. 2007-11

As prescribed in 26.206(a), insert the following provision:

DISASTER OR EMERGENCY AREA REPRESENTATION (NOV 2007)

(a) *Set-aside area.*The area covered in this contract is: *Mid Atlantic Region [Contracting Officer to fill in with definite geographic boundaries.]*

(b) *Representations.* The offeror represents that it

☐ does

☑ does not reside or primarily do business in the designated set-aside area.

(c) An offeror is considered to be residing or primarily doing business in the set-aside area if, during the last twelve months-

(1) The offeror had its main operating office in the area; and

(2) That office generated at least half of the offeror's gross revenues and employed at least half of the offeror's permanent employees.

(d) If the offeror does not meet the criteria in paragraph (c) of this provision, factors to be considered in determining whether an offeror resides or primarily does business in the set-aside area include-

(1) Physical location(s) of the offeror's permanent office(s) and date any office in the set-aside area(s) was established;

(2) Current state licenses;

(3) Record of past work in the set-aside area(s) (*e.g.*, how much and for how long);

(4) Contractual history the offeror has had with subcontractors and/or suppliers in the set-aside area;

(5) Percentage of the offeror's gross revenues attributable to work performed in the set-aside area;

(6) Number of permanent employees the offeror employs in the set-aside area;

(7) Membership in local and state organizations in the set-aside area; and

(8) Other evidence that establishes the offeror resides or primarily does business in the set-aside area. For example, sole proprietorships may submit utility bills and bank statements.

(e) If the offeror represents it resides or primarily does business in the set-aside area, the offeror shall furnish documentation to support its representation if requested by the Contracting Officer. The solicitation may require the offeror to submit with its offer documentation to support the representation.

(End of provision)

FINANCIAL RESOURCE REQUIREMENT

COVER LETTER

August 17, 2020

Miami Wiipica, LLC
1950 Roland Clarke Place, Suite 210E
Reston, VA 20191

Re: Solicitation #FA286020R0045– Multiple Award Construction Contract (MACC) for Joint Base Andrews, MD and Joint Base Anacostia Bolling, Washington, D.C

Mr. Michael A. Carmody:

Miami Wiipica LLC, a SBA certified tribal 8(a) owned by the Miami Nation Enterprises, hereby presents the Financial Resource Requirement for the Multiple Award Construction Contract (MACC) for Joint Base Andrews, MD and Joint Base Anacostia Bolling, Washington, D.C.

Miami Wiipica is dedicated to serving federal customers in construction, operations and maintenance, design/build, engineering, studies and remediation, and commissioning projects. We have the infrastructure and assets to support a variety of projects in diverse geographic locations, from design to close out.

Our income statement and balance sheet for the past five (5) fiscal years are outlined below and detailed on pages 7-22.

Year 2019 – Total Assets $103,186,215.00
Year 2018 – Total Assets $88,277,452.00
Year 2017 – Total Assets $88,920,540.00
Year 2016 – Total Assets $87,609.337.00
Year 2015 – Total Assets $128,158,951.00

We look forward to the opportunity to take on your mission as our own and work together towards a common goal.

Please feel free to contact me at 571-323-5673 or cwhitlock@mn-e.com.

Sincerely,

Cecil Whitlock
General Manager

Financial Capability Letter from Financial Institution

WELCH STATE BANK

Member F D I C

August 3, 2020

Solicitation: FA286020R0045 MACC JB Andrews and JB Anacostia-Bolling
Welch State Bank
Steve Owens Branch, Miami OK
Point-of-Contact: Jay Victor, SVP
Telephone Number: 918-544-9100
Fax Number: 918-544-9100
Email Address: jvictor@welchstatebank.com

In Reference to:
Miami Wiipica, LLC
1950 Roland Clarke Place Suite 210
Reston VA 20191

At the present time, Miami Wiipica, LLC has no commitments to Welch State Bank. At the present time, Miami Wiipica, LLC has no lines of credit and no open letters of credit with Welch State Bank. At the present time, Miami Wiipica, LLC has financial resources which include a transaction account with a current balance of $59,071.17.

Miami Wiipica, LLC is owned by Miami Nation Enterprises which has deposits totaling more than $4,000,000.00 with this institution.

Sincerely,

Jay Victor
Sr. Vice-President

P.O. Box 1618
Miami, OK 74355

918-544-9100
Fax 918-544-9101

Bonding Capability

CENTENNIAL
Surety Associates
An AssuredPartners Agency

251 Najoles Road, Suite H
Millersville, MD 21108
O: 301.725.1855 F: 301.725.2430
www.centennialsurety.com

August 13, 2020

RE: Miami Wiipica, LLC

To Whom It May Concern:

Miami Wiipica, LLC is a highly regarded and valued client of our agency and the Hartford Casualty Insurance Company. Hartford Casualty Insurance Company has expressed to them their willingness to provide bonding to support individual projects in the amount of $20,000,000 single with an aggregate of $60,000,000.

In accordance with normal practice, Hartford Casualty Insurance Company's willingness to extend suretyship will be based on their underwriting of the account at the time the bonds are requested.

In addition, we would expect that any execution of any final bonds would be subject to review of the contract documents by the Hartford Casualty Insurance Company as well as satisfactory evidence of financing for the project. Please note this letter is not to be construed as an approval for any project but is offered as an indication of support.

If we can provide any further assistance, please do not hesitate to call upon us.

This letter will be valid for a period of ninety (90) days from the date of this letter.

Sincerely,

Michael E. Schendel

Michael E. Schendel, President
301-725-1855 ext 205 (office)
240-461-3137 (cell)

Income Statement and Balance Sheet

MIAMI NATION ENTERPRISES

CONSOLIDATED BALANCE SHEET
December 31, 2019

ASSETS

Current assets	
Cash and cash equivalents	$ 18,399,944
Accounts receivable, net of allowance of $255,124	5,958,939
Contracts receivable, net of allowance of $335,661	25,624,684
Contracts receivable, retainage	6,128,375
Notes receivable	404,021
Contract assets	2,879,627
Inventories	7,135,424
Prepaid expenses	1,262,664
Other current assets	762,985
Total current assets	68,556,663
Property and equipment	
Buildings and improvements	3,996,672
Land and improvements	251,954
Equipment and vehicles	44,424,261
Furniture and office equipment	2,857,381
Software	366,956
	51,897,224
Less accumulated depreciation	(27,346,435)
Total property and equipment, net	24,550,789
Other non-current assets	
Land, held for sale	400,000
Other non-current assets	402,510
Goodwill, net	9,276,253
Total non-current assets	10,078,763
Total assets	$ 103,186,215

MIAMI NATION ENTERPRISES

LIABILITIES AND OWNERS' EQUITY

Current liabilities	
Accounts payable	$ 20,247,142
Accrued expenses and other current liabilities	1,895,213
Salaries and payroll taxes payable	2,674,706
Contract liabilities	5,063,253
Distributions payable	2,069,580
Long-term debt - current portion	3,578,399
Total current liabilities	35,528,293
Long-term liabilities	
Long-term debt	8,184,991
Other long-term liabilities	223,476
Total long-term liabilities	8,408,467
Owners' equity	
Noncontrolling interest in subsidiaries	10,238,261
Contributed capital	38,800,278
Retained earnings	10,210,916
Total owners' equity	59,249,455
Total liabilities and owners' equity	$ 103,186,215

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENT OF OPERATIONS
Year ended December 31, 2019

Operating revenues	$ 246,719,990
Direct costs of revenues	198,349,643
Gross profit	48,370,347
Operating expenses	36,252,321
Operating income	12,118,026
Other income (expense):	
Interest income	143,516
Miscellaneous income	463,080
Interest expense	(575,474)
Gain on sale of assets	5,341
Goodwill impairment	(150,447)
	(113,984)
Net income	12,004,042
Less: Net income attibutable to noncontrolling interest	(3,377,698)
Net income attributable to MNE	$ 8,626,344

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED BALANCE SHEET
December 31, 2018

ASSETS

Current assets	
Cash and cash equivalents	$ 14,996,987
Accounts receivable, net of allowance of $1,314,041	28,208,619
Notes receivable	193,356
Cost and earnings in excess of billings	3,145,629
Inventories	5,737,822
Prepaid expenses	907,983
Other current assets	693,463
Total current assets	53,883,859
Property and equipment	
Buildings and improvements	3,492,572
Land and improvements	251,953
Equipment and vehicles	39,254,242
Furniture and office equipment	3,658,036
Software	366,956
	47,023,759
Less accumulated depreciation	(22,867,967)
Total property and equipment, net	24,155,792
Other non-current assets	
Land, held for sale	400,000
Other non-current assets	273,166
Goodwill, net	9,564,635
Total non-current assets	10,237,801
Total assets	$ 88,277,452

MIAMI NATION ENTERPRISES

LIABILITIES AND OWNERS' EQUITY

Current liabilities	
Accounts payable	$ 13,430,701
Accrued expenses and other current liabilities	1,410,045
Salaries and payroll taxes payable	2,565,474
Billings in excess of cost and earnings	3,089,774
Distributions payable	1,945,228
Due to Tribe	366,522
Lines of credit payable	1,177,225
Long-term debt - current portion	4,416,743
Total current liabilities	28,401,712
Long-term liabilities	
Long-term debt	6,489,558
Other long-term liabilities	229,664
Total long-term liabilities	6,719,222
Owners' equity	
Noncontrolling interest in subsidiaries	8,509,069
Contributed capital	38,800,278
Retained earnings	5,847,171
Total owners' equity	53,156,518
Total liabilities and owners' equity	$ 88,277,452

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENT OF OPERATIONS
Year ended December 31, 2018

Operating revenues	$ 222,429,443
Direct costs of revenues	172,225,596
Gross profit	50,203,847
Operating expenses	34,912,321
Operating income	15,291,526
Other income (expense):	
Interest income	62,949
Miscellaneous income/(expense)	617,580
Interest expense	(452,518)
Gain on sale of assets	151,843
Goodwill impairment	(447,079)
Noncontrolling interest in earnings	(4,613,788)
	(4,681,013)
Net income	10,610,513
Beginning retained earnings (adjusted)	1,497,976
Transfer of capital from noncontrolling interest	(1,135,513)
Distributions	(5,125,805)
Ending retained earnings	$ 5,847,171

The accompanying notes are an integral part of these financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED BALANCE SHEET
December 31, 2017

ASSETS

Current assets	
Cash and cash equivalents	$ 13,866,302
Accounts receivable, net of allowance of $467,204	29,589,020
Notes receivable	177,644
Cost & earnings in excess of billings	3,721,489
Due from members	1,190,380
Inventories	6,502,963
Deposits	158,164
Prepaid expenses	1,093,709
Other current assets	302,364
Total current assets	56,602,035
Property and equipment	
Buildings and improvements	4,226,321
Land and improvements	251,954
Equipment and vehicles	31,594,914
Furniture and office equipment	3,571,657
Software	328,617
	39,973,463
Less accumulated depreciation	(18,414,764)
Total property and equipment, net	21,558,699
Other non-current assets	
Land, held for sale	400,000
Other non-current assets	172,459
Goodwill, net	10,187,347
Total non-current assets	10,759,806
Total assets	$ 88,920,540

MIAMI NATION ENTERPRISES

LIABILITIES AND OWNERS' EQUITY

Current liabilities	
Accounts payable	$ 15,878,353
Accrued expenses & other current liabilities	2,766,413
Salaries and payroll taxes payable	1,096,056
Billings in excess of cost and earnings	6,274,920
Distributions payable	1,945,228
Due to Tribe	540,000
Lines of credit payable	1,473,250
Long-term debt - current portion	4,641,055
Total current liabilities	34,615,275
Long-term liabilities	
Long-term debt	6,573,564
Other long-term liabilities	827,913
Total-long term liabilities	7,401,477
Owners' equity	
Minority interests	6,565,650
Contributed capital	38,800,278
Retained earnings	1,537,860
Total owners' equity	46,903,788
Total liabilities and owners' equity	$ 88,920,540

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENT OF OPERATIONS
Year ended December 31, 2017

Operating revenues	$ 218,862,639
Direct costs of revenues	170,692,412
Gross profit	48,170,227
Operating expenses	34,495,488
Operating income	13,674,739
Other income (expense):	
Interest income	56,606
Miscellaneous income/(expense)	815,474
Interest expense	(492,677)
Unusual expense items	(2,097,444)
Loss on sale of assets	(71,161)
Goodwill impairment	(1,976,503)
Minority interest in earnings	(5,160,691)
	(8,926,396)
Net income	4,748,343
Beginning retained earnings	3,210,202
Prior period adjustments	(642,727)
Distributions	(3,205,530)
Other adjustments	(2,572,428)
Ending retained earnings	$ 1,537,860

The accompanying notes are an integral part of these financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED BALANCE SHEETS
December 31, 2016

ASSETS

Current assets	
Cash and cash equivalents	$ 9,498,228
Accounts receivable, net of allowance of $432,424	29,977,564
Notes receivable	243,414
Cost & earnings in excess of billings	2,492,080
Due from member	1,352,966
Inventories	7,178,995
Deposits	1,611,249
Prepaid expenses	1,028,543
Other current assets	123,489
Total current assets	53,506,528
Property and equipment	
Buildings and improvements	3,198,716
Land and improvements	986,153
Equipment and vehicles	27,385,821
Furniture and office equipment	4,253,389
Software	335,006
	36,159,085
Less accumulated depreciation	(16,290,375)
Total property and equipment, net	19,868,710
Other non-current assets	
Goodwill, net	12,136,656
Receivable from third-party loan processors	2,097,443
	-
Total non-current assets	14,234,099
Total assets	$ 87,609,337

MIAMI NATION ENTERPRISES

LIABILITIES AND OWNERS' EQUITY

Current liabilities	
Accounts payable	$ 14,935,665
Accrued expenses	1,819,199
Salaries and payroll taxes payable	2,643,363
Billings in excess of cost and earnings	10,688,988
Other current liabilities	1,945,228
Due to Tribe	1,470,000
Lines of credit	2,524,737
Long-term debt - current portion	3,544,066
Total current liabilities	39,571,246
Long-term liabilities	
Long-term debt	5,679,269
Other long-term liabilities	67,304
Total-long term liabilities	5,746,573
Owners' equity	
Minority interests	478,927
Contributed capital	38,602,389
Retained earnings	3,210,202
Total owners' equity	42,291,518
Total liabilities and owners' equity	$ 87,609,337

The accompanying notes are an integral part of these financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENTS OF OPERATIONS
Year ended December 31, 2016

Operating revenues	$ 169,806,099
Direct costs of services provided	132,925,865
Gross profit	36,880,234
Operating expenses	34,586,547
Operating income	2,293,687
Other income (expense):	
Interest income	50,774
Miscellaneous income/(expense)	(306,486)
Interest expense	(976,936)
Unusual expense items	(2,686,584)
Goodwill impairment	(4,564,938)
Minority interest in earnings	(683,735)
	(9,167,905)
Net loss	(6,874,218)
Beginning retained earnings	63,288,059
Prior period adjustments	(567,211)
Distributions	(52,636,428)
Ending retained earnings	$ 3,210,202

The accompanying notes are an integral part of these financial statements.

MIAMI NATION ENTERPRISES
Consolidated Balance Sheet
As of December 31, 2015

Assets	
Current Assets	
Cash and cash equivalents	$ 54,227,482
Cash held by third parties	3,017,800
Accounts receivable, net of allowance of $483,000	17,287,592
Notes receivable	2,101,918
Cost & earnings in excess of billings	3,344,275
Due from member	1,347,739
Inventories	5,301,886
Deposits	5,340,207
Prepaid expenses	1,104,968
Other current assets	731,744
Total Current Assets	93,805,611
Non-Current Assets	
Property and equipment	
Buildings and improvements	2,720,533
Land and improvements	961,151
Equipment and vehicles	24,581,259
Furniture and office equipment	1,918,047
Software	546,319
Total property and equipment	30,727,309
Less: Accumulated depreciation	(13,364,181)
Total property and equipment, net	17,363,128
Other Non-Current Assets	
Goodwill, net	16,912,003
Other assets	78,208
Total non-current assets	16,990,211
Total Assets	$ 128,158,951

The accompanying notes are an integral part of these financial statements.

MIAMI NATION ENTERPRISES
Consolidated Balance Sheet
As of December 31, 2015

Liabilities	
Current Liabilities	
Accounts payable	$ 8,235,851
Accrued expenses	2,270,570
Salaries and payroll taxes payable	834,975
Billings in excess of cost and earnings	2,821,694
Due to Tribe	720,000
Lines of credit	1,572,512
Long term debt - current portion	3,456,500
Total Current Liabilities	19,912,102
Non-Current Liabilities	
Notes payable	5,412,213
Total Non-Current Liabilities	5,412,213
Total Liabilities	25,324,315
Owners' Equity	
Minority interests	1,768,437
Contributed capital	37,778,100
Retained earnings	63,288,099
Total Owners' Equity	102,834,636
Total Liabilities and Owners' Equity	$ 128,158,951

The accompanying notes are an integral part of these financial statements.

MIAMI NATION ENTERPRISES
Consolidated Statement of Income
For the Year Ended December 31, 2015

Operating Revenues	$ 110,669,917
Direct Cost of Services Provided	85,765,019
Gross Profit	24,904,898
Operating Expenses	28,854,946
Net Operating Income (Loss)	(3,950,048)
Non-Operating Revenues (Expenses)	
Interest income	53,572
Miscellaneous income	186,019
Interest expense	(449,341)
Minority interest in earnings	422,146
Total Non-Operating Revenues, Net of Expenses	212,396
Net Income (Loss)	(3,737,652)
Beginning Retained Earnings	93,277,129
Prior Period Adjustments	(85,263)
Distributions	(26,166,115)
Ending Retained Earnings	$ 63,288,099

The accompanying notes are an integral part of these financial statements.

8(a) Status

SAM
SYSTEM FOR AWARD MANAGEMENT

Cecil Whitlock Log Out

ALERT: SBA connectivity is experiencing an outage. For questions about small business size status, users should return later or contact SBA directly (www.sba.gov).

ALERT: SAM.gov will be down for scheduled maintenance Saturday, 09/12/2020 from 8:00 AM to 1:00 PM.

Entity Dashboard

- Entity Overview
- Entity Registration
  - Core Data
  - Assertions
  - Reps & Certs
  - POCs
- Reports
  - Service Contract Report
  - BioPreferred Report
- Exclusions
  - Active Exclusions
  - Inactive Exclusions
  - Excluded Family Members

BACK TO USER DASHBOARD

Miami Wiipica, LLC
DUNS: 117007074 CAGE Code: 8B6Y9
Status: Active
Expiration Date: 03/20/2021
Purpose of Registration: All Awards

1950 Roland Clarke Pl Ste 210e
Reston, VA, 20191-1414 .
UNITED STATES

Review Core Data

Review Core Data

This is a view only screen. If you want to make changes to this entity registration, please select the "Back to User Dashboard" button, select the entity registration under Complete Registrations, and then choose the "Update" button.

DUNS Number:	117007074
D&B Legal Business Name:	Miami Wiipica, LLC
Doing Business As:	(none)

Business & TIN Information:

Business Information:

Business Start Date:	01/23/2019
Fiscal Year End Close Date:	12/31
Company Division Name:	
Company Division Number:	
Corporate URL:	
Congressional District:	VA 11
Initial Registration Date:	04/26/2019
Submission Date:	03/20/2020
Activation Date:	
Expiration Date:	03/20/2021
MPIN:	*****on97

Physical Address:

Address Line 1:	1950 Roland Clarke Pl Ste 210e
City:	Reston
State/Province:	VA
Country:	UNITED STATES
ZIP/Postal Code:	20191 - 1414

Mailing Address:

Address Line 1:	1950 Roland Clarke Pl Ste 210e
Address Line 2:	
City:	Reston
State/Province:	VA
Country:	UNITED STATES
ZIP/Postal Code:	20191 - 1414

Sensitive Identifiers:

EIN:	*****2385

IRS consent:

Tax Payer Name:	Miami Wilpica LLC
Address Line 1:	1950 Roland Clarke Pl Ste 210e
Address Line 2:	
City:	Reston
State:	VA
Country:	UNITED STATES
ZIP/Postal Code:	20191 - 1414
Type of Tax:	Applicable Federal Tax
Tax Year: (Most Recent Tax Year)	2019
Name of Individual Executing Consent:	Cecil Whitlock
Title of the Individual Executing Consent:	General Manager
Signature:	Cecil Whitlock
TIN Consent Date:	03/20/2020

CAGE/NCAGE Code

CAGE:	8B6Y9

General Information

Doing Business As:	(none)
Country of Incorporation:	UNITED STATES
State of Incorporation:	VA
Correspondence Flag:	
Company Security Level:	
Highest Employee Security Level:	

Business Types

Check the registrant's Reps & Certs, if present, under FAR 52.212-3 or FAR 52.219-1 to determine if the entity is an SBA-certified HUBZone small business concern. Additional small business information may be found in the SBA's Dynamic Small Business Search if the entity completed the SBA Supplemental Pages during registration.

Entity Structure

Partnership or Limited Liability Partnership

Profit Structure

For Profit Organization

Business Types

Minority Owned Business

Native American Owned

Entity Type

Business or Organization

Purpose of Registration

All Awards

SBA Certified

SBA Certified 8(a) Program Participant

SBA 8(a)Entrance Date: 11/26/2019

SBA 8(a) Exit Date: 11/25/2028

Federally Recognized Native American Entity

Tribally Owned Firm

Organization Factors

Limited Liability Company

Financial Information

Do you accept credit cards as a method of payment? Yes

Account Details: WELCH STATE BANK - Checking

CAGE Code: 8B6Y9

Electronic Funds Transfer:

Account Type:	Checking
Financial Institute:	WELCH STATE BANK
ABA Routing Number:	*****4942
Account Number:	***4084
Lockbox Number:	

Automated Clearing House (ACH):

ACH U.S. Phone:	(571)323-5647
ACH Non-U.S. Phone:	
ACH Fax:	
ACH Email:	

Remittance Address:

Remittance Name:	Daniela David, Controller
Address Line 1:	1950 Roland Clarke Pl.
Address Line 2:	Ste 210e
City:	Reston
State:	VA
Country:	UNITED STATES
ZIP/Postal Code:	20191

Executive Compensation Questions

In your business or organization's preceding completed fiscal year, did your business or organization (the legal entity to which this specific SAM record, represented by a DUNS number, belongs) receive both of the following: 1. 80 percent or more of your annual gross revenues in U.S. federal contracts, subcontracts, loans, grants, subgrants, and/or cooperative agreements and 2. $25,000,000 or more in annual gross revenues from U.S. federal contracts, subcontracts, loans, grants, subgrants, and/or cooperative agreements?

No

Does the public have access to information about the compensation of the senior executives in your business or organization (the legal entity to which this specific SAM record, represented by a DUNS number, belongs) through periodic reports filed under section 13(a) or 15(d) of the Securities Exchange Act of 1934 (15 U.S.C. 78m(a), 78o(d)) or section 6104 of the Internal Revenue Code of 1986?

Not Selected

Proceedings Questions

Is your business or organization, as represented by the DUNS Number on this entity registration, responding to a Federal procurement opportunity that contains the provision at FAR 52.209-7, subject to the clause in FAR 52.209-9 in a current

Federal contract, or applying for a Federal grant opportunity which contains the award term and condition described in 2 C.F.R. 200 Appendix XII?

No

Does your business or organization, as represented by the DUNS number on this specific SAM record, have current active Federal contracts and/or grants with total value (including any exercised/unexercised options) greater than $10,000,000?

Not Selected

Within the last five years, had the business or organization (represented by the DUNS number on this specific SAM record) and/or any of its principals, in connection with the award to or performance by the business or organization of a Federal contract or grant, been the subject of a Federal or State (1) criminal proceeding resulting in a conviction or other acknowledgment of fault; (2) civil proceeding resulting in a finding of fault with a monetary fine, penalty, reimbursement, restitution, and/or damages greater than $5,000, or other acknowledgment of fault; and/or (3) administrative proceeding resulting in a finding of fault with either a monetary fine or penalty greater than $5,000 or reimbursement, restitution, or damages greater than $100,000, or other acknowledgment of fault?

Not Selected

SAM Search Authorization

I authorize my entity's non-sensitive information to be displayed in SAM public search results: **Yes**

Teaming Agreement

September 1, 2020

Design Build Consortium, LLC (DBC)
39 Amber Forest
San Antonio, TX 78232
DUNS 079171715
CAGE Code 702H6
EIN 463956300

Re: Solicitation #FA286020R0045– Multiple Award Construction Contract (MACC) for Joint Base Andrews, MD and Joint Base Anacostia Bolling, Washington, D.C

Mr. Michael A. Carmody:

DBC, LLC is a Services Disabled Veteran Owned and Operated Small Business that has been focused on supporting federal agencies for various design requirements since 2013.

DBC, LLC has teamed up with Miami Wiipica, LLC on the above referenced solicitation and is committed to providing design services on any design related task orders awarded under this contract.

Please feel free to contact me at 214-864-9466 or at cbasham@designbcllc.com.

Sincerely,

Chris Basham, AIA, NCARB, FAICP, LEED AP
Program Manager